

Om Prakash Gupta v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 6 November 2024 · 2024:AHC:174116-DB · WRIT - C No. 36468 of 2024 · **Writ disposed with liberty to avail Clause 6.5; coercive recovery stayed briefly**

HEADNOTE

Writ against a final electricity bill and a recovery warrant for Rs.9,04,911 disposed of with liberty to file a fresh representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005, after the statutory deposit. If filed within ten days, the Executive Engineer shall decide it on merits in accordance with law. Coercive recovery stayed for two months or until that decision, whichever is earlier; the protection stands vacated automatically if the remedy is not availed in time.

FACTUAL SUMMARY

Om Prakash Gupta sought quashing of the Executive Engineer, Mau's final electricity bill of 29 April 2024 and the Tehsildar, Ghosi's recovery warrant of 5 August 2024 for Rs.9,04,911 as arrears of land revenue, and a restraint on coercive recovery. His earlier writ against the related arrest warrant was dismissed on 4 September 2024 because the main order was not under challenge, while consumer-forum proceedings for reconnection were pending. In this petition he alleged that no hearing had been given. A representation rejected on 24 September 2024 was not challenged.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed bill and arrears relegated to Clause 6.5

HOLDING

Where the consumer disputes the correctness of the electricity bill and arrears, and agrees to file a fresh representation after the statutory deposit, the writ is disposed of with liberty to invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Executive Engineer shall consider and decide that representation on its own merits, and if it is filed within ten days, in accordance with law. Coercive recovery is stayed for two months or until disposal of the representation, whichever is earlier, and the protection stands vacated automatically if the remedy is not availed in time. ¶ 6-11

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the final bill and recovery warrant was disposed of with liberty to file a fresh Clause 6.5 representation after the statutory deposit, to be decided on merits. ¶ 6-9

clause-6.5-representation-executive-engineer Respondent No. 4, the Executive Engineer, was directed to consider and decide the Clause 6.5 representation on its own merits if filed within ten days. ¶ 8-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE FINAL BILL DATED 29.04.2024 AND OF THE RECOVERY OF RS.9,04,911

Left to a fresh representation under Clause 6.5, to be decided by the Executive Engineer on merits. ¶ 6-9

NOT DECIDED — WHETHER THE PETITIONER WAS DENIED A HEARING BEFORE THE FINAL BILL, AND THE VALIDITY OF THE REJECTION DATED 24.09.2024

The rejection was not under challenge, and the hearing objection was not adjudicated. ¶ 5

